

CHAPTER 15.58: SPECIAL EVENTS ON PRIVATE PROPERTY

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Cross-reference:

Special events on public streets, public facilities, see Chapter 8.71

§ 15.58.010 INTENT AND PURPOSE.

The intent of this chapter is to identify special events and to specify the requirements and provisions for their approval regardless of the proposed location or zone classification. The requirements and provisions established for each special event are intended to ensure the general safety, health and welfare of the community and to ensure that the temporary operation of the special event will be a compatible activity for the neighborhood in which it is located.

(Ord. 2982, passed - -2001)

§ 15.58.020 DEFINITIONS.

For the purpose of this chapter, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

SPECIAL EVENT (PRIVATE PROPERTY). An event that is conducted outdoors on private property by a private entity and is open to the general public (admitted or invited). Examples of such events include: carnivals, festivals, car show, circus, auction or a similar kind of temporary outdoor exhibition or performance.

SPECIAL EVENT (PUBLIC PROPERTY). An event that is conducted outdoors on public streets, public parking lots, public parks or public facilities.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.025 APPLICABILITY.

(A) Special events (private property) shall be subject to the review and approval process specified in this chapter.

(B) Special events (public property) shall be subject to review and approval from the Public Works Department and/or Parks and Recreation Department.

(C) A temporary commercial activity, such as a sidewalk or parking lot sale, shall be subject to the provisions of § 15.58.095 and shall not be considered a special event for purposes of this chapter.

(Ord. 3232, passed - -2016)

§ 15.58.030 PERMIT REQUIRED.

(A) A special event shall be prohibited on private property unless a properly issued special event permit is first issued to the applicant. An application for a special event on private property shall be filed with the Community and Economic Development Department.

(B) An application for a special event in a public park shall be filed with the Director of Parks and Recreation in accordance with Chapter 9.12 of this code.

(C) An application for a special event using a public street and/or a public facility shall be filed with the Director of Public Works in accordance with Chapter 8.71 of this code.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.040 APPLICATION FOR PERMIT AND FEES.

(A) A complete application for a special event permit must be received by the Community and Economic Development Department no later than 30 days before the scheduled special event. The City Council may, by resolution, set appropriate fees for the filing of the application.

(B) An application for a special event permit shall be on a form provided by the city and shall provide the information necessary to make recommendations and/or provisions for approval. At a minimum, the following information shall be provided:

(1) The applicant's identity and the identity of a responsible person who will serve as the primary interface for communications;

(2) A site plan of the proposed special event area that clearly identifies the following:

(a) The geographical boundaries of the event;

(b) The location of any temporary buildings or structures, including any stages, tents, canopies, toilets or vendor's booths;

(c) The current land uses on adjacent properties to the proposed location;

(d) Location of fire hydrants and fire access lanes;

(e) Location of all proposed toilets, trash disposal and water facilities that will be provided; and

(f) Location of proposed on-site parking and number of spaces provided.

(3) A description of the type of special event to be held, including:

(a) The hours of operation of the activities;

(b) The expected number of participants, assistants, workers and spectators to be involved in the special event;

(c) All proposed security measures;

(d) Parking management and directional signage for the event; and

(e) Setup and cleanup plan.

(4) If parking is proposed on another property, written approval from that property owner permitting the use of said parking is required.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.050 REQUIREMENTS AND PROVISIONS FOR APPROVAL OF PERMIT.

(A) Requirements and conditions shall be imposed on any special event permit to protect the public health, safety and welfare. At a minimum, said conditions shall include the following.

(1) Signs shall be posted on-site to clearly and conspicuously indicate the geographical boundaries of the special event.

(2) All equipment, stages, rides or any other loud noise emitting apparatuses shall maintain a minimum 20-foot setback from any property line abutting a residential use.

(3) The special event permit holder shall ensure that on-site circulation and access to parking is maintained throughout the event. The use of traffic and parking directional signs, or other measures, are required.

(4) The special event permit holder shall provide sanitation, trash collection/disposal measures for the special event and agrees to clean up no later than one day following the completion of the event.

(5) Hours of operation for the event shall be limited to 10:00 a.m. to 11:00 p.m. Monday through Saturday and 11:00 a.m. to 9:00 p.m. on Sunday.

(6) Noise sources associated with the construction, dismantling of equipment, cleaning, deliveries and rides, shall be permitted provided said activities do not take place between the hours of 8:00 p.m. and 7:00 a.m. on weekdays, Saturday or Sunday.

(7) Documentation maintained on-site that any required building, electrical or plumbing permits and associated

inspections have been completed.

(8) The special event permit holder shall make sufficient arrangements to provide adequate parking for the people attending the event. If parking is proposed on another property, written approval from that property owner permitting the use of said parking is received.

(9) Compliance with any additional requirements or conditions specified by the city to ensure the health, safety and welfare of the community during the event.

(B) Those having the responsibility to review and approve the application may stipulate additional provisions or requirements.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.060 PROCEDURE FOR REVIEW OF APPLICATION.

(A) A decision to approve an application for a special event permit on private property shall be made by the Director of Community and Economic Development or their designee.

(B) A permit for a special event may be approved and issued if all provisions and requirements as stated in this chapter are satisfied. Prior to acting on the application, the Director of Community and Economic Development or their designee shall do the following:

(1) Consult with other applicable city departments and review available records on the request;

(2) Review city records and comments received from the public regarding the events compliance with conditions/requirements from previous events if any have occurred at this location previously;

(3) Notification shall be mailed to adjacent properties no later than five days before the event. If off-site parking is proposed, notice shall also be mailed to properties adjacent to the off-site parking location. The notice shall contain at a minimum:

(a) A map showing the proposed location of the event;

(b) A brief description of the event, including dates, times and any setup and/or clean up requirements;

(c) Contact information to submit comments/concerns to the city prior to the event; and

(d) Contact information and process to submit comments/concerns during or after the event.

(4) Consider all reasonable comments and issues identified by city staff and the general public.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.070 DECISION ON THE APPLICATION AND APPEAL OF DECISION.

Within ten business days after receipt of a complete application, the Director of Community and Economic Development or their designee shall notify the applicant in writing of the decision that approves the request, conditionally approves the request or denies the request with the reasons for denial stated.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.080 SUSPENSION OF PERMIT.

(A) The Director of Community and Economic Development and/or the Chief of Police shall have the power to suspend, and shall suspend, any special event permit if the applicant has done any of the following:

(1) Violated any provision or requirement of approval imposed upon the permit;

(2) Violated any provisions of the law; or

(3) With the actual conduct of the activity, threatened the preservation of the public peace, safety or general welfare, or unreasonably interfered with the use and enjoyment of other property in the immediate vicinity of the activity.

(B) The Director of Community and Economic Development and/or the Chief of Police shall give the applicant written notice of the suspension, and, immediately upon the giving of the notice of the order of suspension, all activities under the permit shall forthwith cease. The decision of the Director of Community and Economic Development and/or the Chief of Police to suspend a permit shall be final and conclusive.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.58.090 BUSINESS LICENSES.

(A) A special event permit issued pursuant to this chapter shall control over any business licenses issued pursuant to Chapter 4.02 . Only those vendors who have received prior written approval from the special event permit holder shall be

allowed to operate within the prescribed venue area of the special event. The written approval shall not be unreasonably withheld.

(B) The special event permit holder may charge a reasonable registration fee of all vendors who desire to operate within the prescribed venue area of the special event.

(Ord. 2982, passed - -2001)

§ 15.58.095 TEMPORARY COMMERCIAL USE ON PRIVATE PROPERTY.

(A) Property with a residential, commercial or industrial zone classification may conduct a temporary commercial use such as a Christmas tree lot, pumpkin patch or agricultural stand on an intermittent, seasonal or promotional basis in accordance with this section.

(B) Such a business activity may operate for a maximum time period of 90 calendar days from the time setup begins to the time all removal and clean up must be completed. Extensions beyond this time period shall require approval by the Planning Commission in accordance with Chapter 15.76 .

(C) The activity shall be allowed on property with an R-1 or R-1P Zone only if there is no habitable structure on the premises.

(D) The activity shall be allowed only on a property having frontage along an arterial or collector street. No direct access from a residential street shall be allowed.

(E) The applicant shall provide written consent from the owner of the subject property to conduct the activity prior to any set up on the site.

(F) The applicant shall obtain applicable permits from the Community and Economic Development and/or Fire Departments and a business license from the Business Registration Department.

(G) The sales and other public areas shall be cleared before opening and shall be maintained free of weeds, holes and other hazards throughout the operation to the satisfaction of the Community and Economic Development Department.

(H) At least six off-street spaces shall be provided for the use of patrons. In the case of a developed lot, sufficient parking as determined by the Director of Community and Economic Development shall be retained for the existing uses on-site during the temporary business activity.

(I) No structure, sign or merchandise associated with the temporary commercial use shall obstruct a public right-of-way.

(J) Advertising signage shall not exceed a collective total of 50 square feet of area, and no sign shall exceed a height of eight feet.

(K) "No Smoking" signs shall be posted wherever indicated by the Fire Department. These signs shall meet the specifications stipulated by the Fire Department.

(L) Property with a commercial zone classification may conduct a temporary open air marketing activity such as a sidewalk or parking lot sale on an intermittent, seasonal or promotional basis in accordance with the following:

(M) Such an activity shall be subject to the provisions of divisions (C) through (J) above.

(N) Such an activity shall be for the display and sale of merchandise of merchants already operating a business on the premises.

(O) Such an activity shall be no longer than five days in duration and only one such activity shall occur on the property within a 30-day period.

(P) Display and sales areas will not obstruct, delay or interfere with the Fire Department or with the egress of building occupants in the event of the fire, and the layout will otherwise comply with the general safety requirement of the State Fire Code.

(Q) The failure to comply with the provisions specified above shall result in the stoppage of the business activity.

(Ord. 3232, passed - -2016)